

Merits: CCP § 664.6(a) provides that if parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. Here, the parties stipulated in a writing signed by the parties to settle this case for \$21,000. Plaintiff agreed to file a dismissal of this action with prejudice, with all sides to bear their own attorney fees and costs, within five days of receipt of the settlement funds.

The Court finds that the Settlement Agreement is valid and enforceable. The Settlement Agreement provides for enforcement under CCP § 664.6. Defendant has performed under the Agreement by paying \$21,000. Plaintiff has failed to perform (despite an unsuccessful attempt to do so) by failing to timely dismiss the matter with prejudice. The matter remains pending before this court has not been dismissed. Plaintiff has failed to attend several status review hearings and has not responded to an Order to Show Cause.

The Motion is **GRANTED**. The entire action of all parties and all causes of action is **DISMISSED** with prejudice. The clerk is directed to vacate all future dates and close the file.

ANGELL-MURRAY, ET AL. VS. C&K RESIDENTIAL HOMES LLC, ET AL.

CASE NUMBER: 24CV-0204149

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions (“OSC”) issued on June 24, 2026, to Plaintiffs, for failure to timely seek default and failure to timely prosecute. No response to the OSC has been filed. However, the Court notes that due to a clerical error, this OSC was issued on erroneous grounds. This matter has settled and the Court intended to issue an OSC re Dismissal. The OSC re Sanctions is **DISCHARGED**. Sanctions will not be imposed.

CAVALRY SPV I, LLC VS. THOMAS

CASE NUMBER: 25CVG-00610

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued to Plaintiff and counsel, on December 17, 2025 for failure to timely serve pleadings on Defendant pursuant to CRC 3.110(b). The Complaint was filed on March 20, 2025. “The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint.” CRC 3.110(b). It has now been over a year and there is no Proof of Service of Summons on file. Plaintiff has been provided with two continuances on the present OSC to accomplish service. At the most recent hearing, Plaintiff was ordered to file a status statement if no proof of service was on file. No status statement has been filed. Plaintiff remains in violation of CRC 3.110(b). Sanctions are imposed in the amount of \$250 against Plaintiff and Counsel. The clerk is directed to prepare a separate order of sanctions. The Court will issue a new Order to Show Cause Re: Monetary Sanctions in the amount of \$500 to Plaintiff and Counsel for their failure to timely serve the Defendant. The hearing on the new Order to Show Cause is set for **Monday, October 12, 2026, at 8:30 a.m. in Department 64.** The clerk is directed to prepare a new Order to Show Cause.

EYE VS. FAIRWAY OAKS MOBILE HOME PARK, ET AL.

CASE NUMBER: 25CV-0208669

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions (“OSC”) issued on June 1, 2026 to Plaintiff Denise Eye, in pro per, for failure to timely serve all defendants as required by California Rules of Court, Rule 3.110(b). The Court notes that

a Substitution of Attorney was filed on June 4, 2026 and Plaintiff is now represented by counsel. Counsel has submitted a response to the OSC stating all defendants have now been served. Proofs of service have been filed for two of the three Defendants. There is no proof of service on file for Defendant Fairway Oaks Mobile Home Park. Based on the efforts of counsel, sanctions will not be imposed. The Court DISCHARGES the OSC. This matter is set for **Monday, September 14, 2026, at 9:00 a.m. in Department 64** for status of responsive pleadings and, if appropriate, trial setting. Plaintiff shall give notice. **No appearance is necessary on today's calendar.**

HILL, ET AL. VS. NELSON, ET AL.

CASE NUMBER: 25CV-0208635

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued to Plaintiff Kathleen Hill and her counsel on June 2, 2026 for their failure to timely serve pleadings on the defendants as required by CRC 3.110(b). The Complaint was filed on September 8, 2025. "The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint." CRC 3.110(b). It has now been over ten months and there is no Proof of Service of Summons on file. No written response to the Order to Show Cause was filed.

With no sufficient excuse for the delay, the Court will impose sanctions in the amount of \$250 against Plaintiff and her counsel. The clerk is directed to prepare a separate Order of Sanctions. The Court will also issue an Order to Show Cause Re: Dismissal for failure to timely serve pursuant to CRC 3.110(b) and failure to timely prosecute. Hearing on the Order to Show Cause Re: Dismissal will be **Monday, October 19, 2026, at 8:30 a.m. in Department 64**. The clerk is directed to issue an Order to Show Cause Re: Dismissal.

HOLLOWELL VS. LITTLEPAGE, ET AL.

CASE NUMBER: 25CV-0206936

Tentative Ruling on Motion to Deem RFAs Admitted: Defendant Joshua James Littlepage seeks an order deeming admitted the truth of matters specified in Defendant's Request for Admissions, Set One, which was served on Plaintiff William Edwin Hollowell by certified mail and email on December 18, 2025. The Motion has been properly noticed and is unopposed.

When a party fails to respond to a request for admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390. Here, Defendant's moving papers sufficiently demonstrate that the discovery was served by mail and email and Plaintiff has failed to respond within the required time frame. The request to deem the matters admitted is granted.

Monetary sanctions are mandatory per CCP 2033.280(c). Defendant requests sanctions of \$3,060.00 consisting of 12 attorney hours at a rate of \$250 per hour, plus a \$60 filing fee. The Court finds the hourly rate reasonable and will award the filing fee. The Court will reduce estimated attorney hours by 6, because there was no opposition to review (1 hour) or reply to prepare (3 hours), and 3 hours for preparing and attending a hearing on this motion is excessive (1